

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 06/12/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0005317

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: ROBERT C. PLACAK &
ASSOCIATES, INC.

vs.

DEFENDANTS: DEBBY BAKER PAGE
ET AL.

NATURE OF PROCEEDINGS: MOTION – COMPEL ANSWERS TO INTERROGATORIES
- DISCOVERY FACILITATOR PROGRAM

2) MOTION – COMPEL – DISCOVERY FACILITATOR PROGRAM

RULING

The matter is transferred to the Presiding Judge, Hon. Stephen Freccero for reassignment. The hearing date will be continued to a law and motion date for the newly assigned judge. The parties will receive notice of the new hearing date.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 06/12/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0006536

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFFS: SOO YOUNG KIM, ET
AL.

vs.

DEFENDANT: HARRIGAN
WEIDENMULLER COMPANY

NATURE OF PROCEEDINGS: DEMURRER

RULING

The demurrer by defendant Harrigan Weidenmuller Company ("Defendant" or "WBC") to the First through Sixth causes of action in the First Amended Complaint ("FAC") of Plaintiffs Soo Young Kim ("Kim") and Erich Lichtblau ("Lichtblau") (collectively "Plaintiffs") is overruled as to the First, Second and Fifth Causes of Action. The demurrer to the Third, Fourth and Sixth Causes of Action is sustained with 30 days leave to amend. The demurrer on the uncertainty ground under Code of Civil Procedure section 430.10, subdivision (f), is overruled.

Factual Background

Plaintiffs were Defendant's commercial tenants. On or about June 14, 2014, Plaintiffs and Defendant, through Timothy Muller ("Muller"), Defendant's President and authorized agent, executed a 10-year lease for restaurant space at 115 San Anselmo Avenue in San Anselmo, plus the use of 1,000 square feet of basement space at no extra charge. Plaintiffs allege Defendant failed to provide them with a legible copy of the lease until December 2023, despite repeated requests beginning in 2014.

On June 6, 2025, Plaintiffs filed their initial complaint. On March 17, 2025, in response to a pending demurrer by Defendant, Plaintiffs filed their operative FAC alleging the following causes of action: 1) breach of contract; 2) breach of the covenant of good faith and fair dealing; 3) intentional interference with prospective economic advantage; 4) negligent interference with prospective economic advantage; 5) breach of contract; and 6) breach of the covenant of good faith and fair dealing.

The First through Fourth causes of action relate to Defendant's alleged unreasonable refusal to allow Plaintiffs to sublease or transfer the lease. Plaintiffs allege that in May 2022, they contacted Defendant about a restaurant group principal interested in assuming the lease and paying Plaintiffs \$100,000 up front plus \$4,700 per month for the remaining lease term. Plaintiffs allege Defendant repeatedly refused to consider the assignment over more than one year, citing uncertainty about a Post Office lease extension and Defendant's desire to redevelop or sell the building. Plaintiffs further allege that as a result, the prospective buyer lost interest and withdrew.